

Vendor Disclosure & Contract Checklist — Victoria

Your obligations as a seller — get this wrong and buyers can walk away, even after signing.

Correct as at July 2026. General information only, not legal advice. Your Section 32 must be prepared by a solicitor or licensed conveyancer — this checklist helps you gather what they'll need, not replace their advice.

Section 1 — Understanding Your Disclosure Obligation

- ☐ [] **Know that the Section 32 (Vendor's Statement) is a legal requirement under the Sale of Land Act 1962 (Vic)**, and it must be given to prospective buyers *before* they sign a contract.
- ☐ [] **Understand you are legally responsible for its accuracy**, even though your solicitor or conveyancer drafts it — the underlying information (and its honesty) is your responsibility, not theirs.
- ☐ [] **Know that real estate agents cannot prepare your Section 32**. They aren't licensed to give the underlying legal advice or order the required searches and certificates — this must be done by your solicitor or a licensed conveyancer.
- ☐ [] **Understand the consequence of getting this wrong**. If you don't provide a vendor statement at all, the purchaser can end the contract at any time and recover all their money. If your Section 32 is misleading or deceptive, it can also give the purchaser grounds to end the contract, and may expose you to litigation risk after settlement.
- ☐ [] **Know your agent's commission may still be payable even if a sale falls through due to a defective Section 32** — this is a real financial reason to get the disclosure right from the outset rather than treating it as paperwork to rush.

Section 2 — Information to Gather for Your Solicitor/Conveyancer

- ☐ [] **Title details** — current certificate of title.
- ☐ [] **Mortgages and charges** — details of any existing mortgage(s) on the property.
- ☐ [] **Easements, covenants and restrictions** — both registered and any you're aware of even if unregistered.
- ☐ [] **Planning zone and overlay information** — including any known planning permits, restrictions, or proposed changes affecting the land.
- ☐ [] **Building permits from the past 7 years** — gather any permits, approvals, and certificates of final inspection for renovations or additions within this window.
- ☐ [] **Owner-builder work details**, if applicable — including any required owner-builder insurance/warranty documentation.
- ☐ [] **Owners corporation (body corporate) information**, if the property is part of a subdivision with common property — recent AGM minutes, financial statements, any special levies, and known disputes.
- ☐ [] **Connected services** — confirm what utilities/services are connected (water, sewerage, electricity, gas, etc.).
- ☐ [] **Outgoings** — current rates, land tax, and any other charges, plus how these will be adjusted at settlement.
- ☐ [] **Notices from statutory authorities** affecting the land (council notices, infrastructure notices, etc.).
- ☐ [] **Bushfire-prone area designation**, if applicable to your property's location.
- ☐ [] **Insurance details** for the property.

Section 3 — Underquoting & Price Transparency Obligations

- ☐ [] **Understand the Statement of Information requirement**. Your agent must prepare and publicly display a Statement of Information for your property showing an indicative price or price range plus genuinely comparable recent sales — this applies to every advertised residential sale, auction or private treaty.
- ☐ [] **Discuss reserve price transparency with your agent if selling at auction**. Current rules are designed to disclose your reserve price to prospective buyers within a set period before the auction — confirm the current specific timeframe with your agent, as this area has been subject to recent reform.
- ☐ [] **Don't ask your agent to advertise a misleadingly low price range to generate interest** — beyond the ethical issue, this is precisely the conduct underquoting protections are designed to prevent, and creates real legal and reputational risk for both you and your agent.

Section 4 — Auction-Specific Disclosure Requirements

- ☐ [] **Ensure your Section 32 is available for inspection at the auction venue for at least 30 minutes before bidding starts**, if selling by auction.
- ☐ [] **Understand there's no cooling-off period for the buyer once the hammer falls** — get your Section 32 and contract genuinely finalised well before auction day, since there's no opportunity to fix disclosure problems after a successful bid.

Section 5 — Final Checks Before Going to Market

- ☐ [] **Confirm your Section 32 is complete and reviewed by your solicitor/conveyancer** before your first open home, not after an offer is already on the table.
- ☐ [] **Cross-check your Section 32 against your own knowledge of the property** — if anything in the document doesn't match what you actually know (past building work, disputes, known issues), flag it with your solicitor immediately rather than letting an inconsistency go to print.
- ☐ [] **Keep a copy of everything provided to buyers** — useful protection if a dispute arises after settlement.

Quick Reference — VIC Vendor Disclosure Essentials

Requirement	Key Detail

Section 32 (Vendor's Statement)	Legally required, prepared by solicitor/conveyancer, vendor is responsible for accuracy
Missing Section 32	Buyer can rescind at any time before settlement
Statement of Information	Mandatory for every advertised residential sale
Auction Section 32 access	Available for inspection ≥30 minutes before bidding
Building permit disclosure window	Past 7 years

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